

22STCV15847 22STCV15847

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Division: Civil Law and Motion

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Case Number: 22STCV15847 Hearing Date: September 14, 2026 Dept: 514

Camaya v. Cainglit

22STCV15847

Plaintiff's Motion to Amend Judgment

Tentative Ruling

The motion is denied.

Background

On May 12, 2022, Rowena Camaya ("Plaintiff") filed a complaint against Gloria R. Cainglit ("Defendant") for breach of promissory note arising from a loan made to Defendant by Nelson Ramos Pulanco, who assigned his rights to Plaintiff.

On September 26, 2022, default was entered against Gloria R. Cainglit.

On May 4, 2023, default judgment was entered against Gloria R. Cainglit.

On March 17, 2026, Plaintiff filed a motion to amend the judgment to add Pete Cainglit ("Cainglit") as a judgment debtor. The motion was placed off calendar on May 11, 2026, when no one appeared for the hearing.

On July 23, 2026, Plaintiff filed this motion

again seeking to amend the judgment to add Cainglit as a judgment debtor.

On August 21, 2026, Plaintiff filed proof of personal service of this motion on Cainglit.

No opposition has been filed.

Legal Standard

“[T]he community estate is liable for a debt incurred by either spouse before or during marriage, regardless of which spouse has the management and control of the property and regardless of whether one or both spouses are parties to the debt or to a judgment for the debt.” (Fam. Code § 910.)

Discussion

Plaintiff

seeks to amend the judgment to add Cainglit as a judgment debtor. At the time the debt was incurred, Cainglit was married to Defendant. Under Family Code section 910, the community estate is liable for debt incurred by either spouse during the marriage. Courts have equitable authority, under certain circumstances, to amend a judgment to add parties who are legally responsible for the obligation.

The

motion to amend is denied, however. In *Oyakawa v. Gillett* (1992) 8 Cal.App.4th 628, our Court of Appeal stated:

“Although community property is liable for a debt incurred by either spouse during marriage, it does not follow that a wife can be added to a judgment rendered against her husband in an action in which she was not named and had no opportunity to defend.”

(Id. at p. 631.) Moreover, there has been no showing that the newly added party had control of the litigation and thus was “virtually represented” in the lawsuit. (Ibid.) Accordingly, allowing the amendment would not comport with due process.

The
motion is denied.

Conclusion

The
Court DENIES the motion of Plaintiff Rowena Camaya to amend judgment.

Moving
party is ORDERED to give notice.